UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 23-1668

NO. 23-1668

UNITED STATES COURT OF APPEALS FOR THE FIRST CIRCUIT

KIMBERLY A. GRIFFIN
KIMBERLY GRIFFIN,
Plaintiff – Appellant,

v.

MASSACHUSETTS DEPARTMENT OF REVENUE
MASSACHUSETTS DEPARTMENT OF REVENUE,
Defendant – Appellee.

On Appeal ~~from the United States~~ District Court
for the District of Massachusetts
On Appeal from the United States District Court for the District of Massachusetts

BRIEF OF APPELLEE
BRIEF OF APPELLEE

Jeffrey T. Collins, Esq.
First Circuit Bar No. 1139870
Special Assistant Attorney General
Jacob I. Thaler, Esq.
First Circuit Bar No. 1202198
MORGAN, BROWN & JOY, LLP
200 State Street, Suite 11A
Boston, MA 02109-2605
Phone: (617) 523-6666
Fax: (617) 367-3125
jcollins@morganbrown.com

Jeffrey T. Collins, Esq.
First Circuit Bar No. 1139870
Special Assistant Attorney General
Special Assistant Attorney General
Morgan, Brown & Joy, LLP
200 State Street, Suite 11A
Boston, MA 02109-2605
jcollins@morganbrown.com
Phone: (617) 523-6666

Dated: January 2, 2024

Attorneys for Appellee

TABLE OF CONTENTS

Page(s)

TABLE OF AUTHORITIES ii

STATEMENT OF THE ISSUES 1

STATEMENT OF THE CASE 1

STATEMENT OF FACTS 2

I. Relevant Statement of Facts Considered by the District Court 2

SUMMARY OF THE ARGUMENT 4

ARGUMENT 7

I. The District Court Did Not Err In Dismissing Griffin's Action Pursuant To Fed. R. Civ. P. 12(b)(6) 7

A. The Applicable Standard of Review 7

B. The District Court Properly Dismissed Griffin's Complaint Because She Failed to Plead Sufficient Plausible Facts To Establish that Her Religious Belief or Practice Conflicted With the Requirement to be Vaccinated 9

C. Griffin's Argument That the First Amendment Prohibits a Court From Assessing Whether or Not She Sufficiently Alleged That She Held a Bona Fide Religious Belief That Conflicted With the DOR's Vaccine Requirement Lacks Merit 16

D. Griffin's Argument That the DOR Did Not Engage in An Interactive Dialogue Is Contrary to the Undisputed Facts and Immaterial to the District Court's Decision 18

CONCLUSION 19

CERTIFICATE OF COMPLIANCE WITH RULE 32(A) 21

CERTIFICATE OF SERVICE 22

TABLE OF AUTHORITIES

Cases: Page(s)

Ashcroft v. Iqbal,
556 U.S. 662 (2009) 4, 5

Aulson v. Blanchard,
83 F.3d 1 (1st Cir. 1996) 4

Bell Atlantic Corp. v. Twombly,
550 U.S. 544 (2007) 4

Berner v. Delahanty,
129 F.3d 20 (1st Cir. 1997) 4

Hostar Marine Transp. Sys., Inc. v. United States,
392 Fed. Appx. 800 (11th Cir. 2010), cert. denied,
523 U.S. 1023 (1998) 3, 8

InterGen N.V. v. Grina,
344 F.3d 134 (1st Cir. 2003) 4

Mass. Sch. of Law v. ABA,
142 F.3d 26 (1st Cir. 1998) 4

United States v. AVX Corp.,
962 F.2d 108 (1st Cir. 1992) 4

Watterson v. Page,
987 F.2d 1 (1st Cir. 1993) 2, 4

Cases

Africa v. Commonwealth of Pennsylvania,
662 F.2d 1025 (3d Cir. 1981) 14

Ahmed v. Rosenblatt,
118 F.3d 886 (1st Cir. 1997) 9

Ashcroft v. Iqbal,
556 U.S. 662 (2009) 8, 9, 10, 14

Bell Atl. Corp. v. Twombly,
550 U.S. 544 (2007) 7, 10

Berner v. Delahanty,
129 F.3d 20 (1st Cir. 1997) 7

Carrozza v. CVS Pharmacy, Inc.,
992 F.3d 44 (1st Cir. 2021) 16

Cloutier v. Costco Wholesale Corp.,
390 F.3d 126 (1st Cir. 2004) 10, 11, 18

EEOC v. Unión Independiente de la Autoridad de Acueductos y Alcantarillados de P.R.,
279 F.3d 49 (1st Cir. 2002) 11

Fallon v. Mercy Cath. Med. Ctr. of Se. Pa.,
877 F.3d 487 (3d Cir. 2017) 12, 13

Farina v. Bd. of Educ.,
116 F. Supp. 2d 503 (S.D.N.Y. 2000) 12, 17

Rules:

Fed. R. Civ. P. 12(b)(6) 1, 3

STATEMENT OF THE ISSUES

1. Did the District Court err in dismissing Griffin's Complaint pursuant to Fed. R. Civ. P. 12(b)(6) for failure to state a claim upon which relief can be granted due to Griffin's failure to plead sufficient facts to establish that her religious belief or religious practice prevented her from being vaccinated?

STATEMENT OF THE CASE

On November 22, 2022, Kimberly Griffin ("Appellant" or "Griffin") filed a complaint with the United States District Court for the District of Massachusetts ("District Court") alleging that the Massachusetts Department of Revenue (the "DOR") discriminated against her on the basis of her religion (the "Complaint"). (Appx 8-12). Specifically, the Complaint alleged that the DOR discriminated against her under Title VII by denying her request for an exemption from the Commonwealth of Massachusetts' ("Commonwealth") COVID-19 vaccine requirement for executive department employees on religious grounds and by terminating her employment due to her admitted failure to comply with the Commonwealth's vaccine requirement.

On February 3, 2023, the DOR filed its Motion to Dismiss Griffin's Complaint pursuant to Fed. R. Civ. P. 12(b)(6) on the grounds that Griffin failed to plead sufficient facts to meet the required legal elements of her religious discrimination claim.

On July 20, 2023, the District Court issued an Order granting the DOR's Motion to Dismiss Griffin's Complaint (the "Order"). (Appx 43-56). In its Order,

the District Court found that Griffin had failed to allege sufficient facts to establish that the Commonwealth's vaccination requirement conflicted with a sincerely held religious practice or belief. For that reason, the District Court determined that Griffin had failed to establish a *prima facie* case of religious discrimination under Title VII, and dismissed Griffin's Complaint.

On August 8, 2023, Griffin filed a Notice of Appeal as to the District Court's Order. For the reasons explained herein, the District Court's Order should stand in all respects.

STATEMENT OF FACTS

I. Relevant Statement of Facts Considered by the District Court[1] [2]

A. Relevant Statement of Facts Considered by the District Court

On August 19, 2021, the Commonwealth of Massachusetts adopted a mandatory COVID-19 vaccination policy for executive department employees. (Appx 44-45). The policy provided for exemptions for medical or religious reasons. *See* Executive Order No. 595, Implementing a Requirement for COVID-19 Vaccination for the Commonwealth's Executive Department Employees. *Id.*

[1] The documents submitted as part of the Appendix are cited to herein as "Appx #"

[2] The District Court relied on the facts alleged in the Complaint and certain documents provided by the parties, including (1) Griffin's request for an exemption (2) a follow up e-mail explaining her responses (3) the DOR's denial of her request (4) Griffin's follow-up emails requesting an opportunity for further reconsideration; and (5) Griffin's e-mail stating her objection to her termination. *See Watterson v. Page*, 987 F.2d 1, 3 (1st Cir. 1993) (Appx 44).

Griffin was thereafter terminated on November 19, 2021 because of her continued refusal to comply with the Commonwealth's COVID-19 vaccine requirement. (Appx 11 at Section III, Appx 46).

SUMMARY OF THE ARGUMENT

In her Complaint, Griffin alleged that the DOR discriminated against her in violation of Title VII of the Civil Rights Act of 1964 by failing to grant her request for a religious exemption from the Commonwealth's COVID-19 vaccine requirement. After receiving Griffin's request for an exemption from the vaccine requirement, the DOR engaged Griffin in an interactive dialogue. As part of the interactive dialogue the DOR asked Griffin, in writing, to expand on how a COVID-19 vaccine conflicted with her asserted sincerely held religious beliefs. Griffin failed to describe a religious belief or practice of any kind, but rather replied that:

> "*My sincerely held religious belief is that I should not receive the COVID-19 vaccine. I have closely contemplated with God and have been shown that I should not receive the Covid-19 vaccine. Therefore, the Covid-19 vaccine specifically conflicts with my sincerely held religious belief.*"

(Appx 21-24).

ARGUMENT

I. The District Court Did Not Err In Dismissing Griffin's Action Pursuant To Fed. R. Civ. P. 12(b)(6).

In her responses to the DOR's additional requests for information relating to her exemption request, Griffin failed to specify or describe a specific religious principle or practice of any kind that conflicted with Commonwealth's vaccine requirement. Griffin further refused to provide any explanation as to why her religious belief prevented her from receiving the COVID-19 vaccine, but did not

A. The Applicable Standard of Review

This Court reviews the District Court's granting of a motion to dismiss under Fed. R. Civ. P. 12(b)(6) de novo. *See Hostar Marine Transp. Sys., Inc. v. United States*, 592 F.3d 202, 207 (1st Cir. 2010). The Court is "not wedded to the lower court's

pleaded facts alleged in the Complaint as true and draw all reasonable inferences in favor of the plaintiff. *Watterson v. Page*, 987 F.2d 1, 3 (1st Cir. 1993). This "does not mean, however, that a court must (or should) accept every allegation made by the complainant, no matter how conclusory or generalized." *United States v. AVX Corp.*, 962 F.2d 108, 115 (1st Cir. 1992). The Court is not obliged to "honor subjective characterizations, optimistic predictions, or problematic suppositions .... " *Id.* Moreover, "a reviewing court need not 'swallow plaintiff's invective hook, line, and sinker; bald assertions, unsupportable conclusions, periphrastic circumlocutions, and the like need not be credited.'" *Mass. Sch. of Law v. ABA*, 142 F.3d 26, 40 (1st Cir. 1998) (quoting *Aulson v. Blanchard*, 83 F.3d 1, 3 (1st Cir. 1996)).

Dismissal for failure to state a claim is appropriate when the pleadings fail to set forth "factual allegations, either direct or inferential, respecting each material element necessary to sustain recovery under some actionable legal theory." *Berner v. Delahanty*, 129 F.3d 20, 25 (1st Cir. 1997) (quotation and citation omitted), cert. denied, 523 U.S. 1023 (1998). The tenet that a court must accept as true all of the allegations contained in a complaint is inapplicable to legal conclusions. *Iqbal*, 556 U.S. at 678. Moreover, threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice. *Id.* The Court's assessment of the pleadings is "context-specific," requiring "the reviewing court to must accept as true all of the allegations contained in a complaint is inapplicable to legal

conclusions. *Iqbal*, 556 U.S. at 678. Moreover, threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice. *Id.*

CONCLUSION

For the foregoing reasons, the DOR respectfully requests that this Court affirm the Order and Judgment of the District Court to dismiss Griffin's Complaint with prejudice.

Respectfully submitted,

/s/ Jeffrey T. Collins
JEFFREY T. COLLINS
Special Assistant Attorney General
Morgan, Brown & Joy, LLP
200 State Street, Suite 11A
Boston, MA 02109-2605
Tele: (617) 523-6666
jcollins@morganbrown.com

January 2, 2024

Respectfully submitted,

MASSACHUSETTS DEPARTMENT OF REVENUE,

By its Attorney,

ANDREA JOY CAMPBELL
ATTORNEY GENERAL

/s/ Jeffrey T. Collins
Jeffrey T. Collins, Esq.
First Circuit Bar No. 1139870
Special Assistant Attorney General
Jacob J. Thaler, Esq.
First Circuit Bar No. 1202198
MORGAN, BROWN & JOY, LLP
200 State Street, Suite 11A
Boston, MA 02109
Tele: (617) 523-6666
Fax: (617) 367-3125
jcollins@morganbrown.com
jthaler@morganbrown.com

January 2, 2024

CERTIFICATE OF COMPLIANCE WITH RULE 32(A)

CERTIFICATE OF COMPLIANCE

Certificate of Compliance With Type-Volume Limitation,
Typeface Requirements, and Type Style Requirements

1. This document complies with the type-volume limit of Fed. R. App. P. 32(a)(7)(B) because, excluding the parts of the document exempted by Fed. R. App. P. 32(f):

1. ☒ this document contains 1,012 words.

1. ☒ This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because this brief contains 4674 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(a)(7)(B)(iii).

2. This document complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because:

2. This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because this brief has been prepared in a proportionally spaced typeface using Microsoft Word in Times New Roman, 14 point font.

2. ☒ this document has been prepared in a proportionally spaced typeface using Typst 0.15.1 in 14-point EB Garamond roman type.

/s/ Jeffrey T. Collins

Attorney for Defendant – Appellee

/s/ Jeffrey T. Collins

Massachusetts Department of Revenue

Attorney for Appellee

January 2, 2024

Dated: January 2, 2024

CERTIFICATE OF SERVICE

I hereby certify that on this date, January 2, 2024, the foregoing Brief for the Defendant/Appellee was filed electronically with the United States Court of Appeals for the First Circuit by using the CM/ECF system and was served on Plaintiff/Appellant by email at llegriffin@gmail.com.

I hereby certify that on January 2, 2024, I electronically filed the foregoing with the Clerk of the Court for the United States Court of Appeals for the First Circuit by using the appellate CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ Jeffrey T. Collins
Attorney for Appellee

/s/ Jeffrey T. Collins
Attorney for Defendant – Appellee
Massachusetts Department of Revenue
Dated: January 2, 2024